

(4)

No. 94-788

FILED

FEB 21 1995

DEPT. OF THE CLERK

In The
Supreme Court of the United States

October Term, 1994

CITY OF MILWAUKEE,

Petitioner,

vs.

CEMENT DIVISION, NATIONAL
GYPSUM COMPANY, ET AL.,

Respondents.

On Writ Of Certiorari
To The United States Court Of Appeals
For The Seventh Circuit

JOINT APPENDIX

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HARNEY B. STOVER, JR.*
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Counsel for Respondents

*Counsel of Record

**Petition For Certiorari Filed October 31, 1994
Certiorari Granted January 6, 1995**



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* This document can be found in the Petition for Writ of Certiorari on pages 18a-23a.

** This document can be found in the Petition for Writ of Certiorari on pages 1a-17a.

RELEVANT DOCKET ENTRIES

TERMED APPEAL

U.S. District Court
Eastern District of Wisconsin (Milwaukee)
CIVIL DOCKET FOR CASE #: 80-CV-1001

Filed: 10/29/80

Cement Div Natl Gyps v.
Milwaukee, City of

Assigned to: Judge Thomas J. Curran

Demand: \$4,000

Nature of Suit: 340

Lead Docket: None

Jurisdiction:

Dkt # in USCA : is

Federal Question

:93- -02545

Cause: 28:1331 Fed. Question: Personal Injury

CEMENT DIVISION
NATIONAL GYPSUM
COMPANY

plaintiff

Harney B. Stover, Jr.

[COR LD NTC]

Davis & Kuelthau

111 E. Kilbourn Ave. -

Suite 1400

Milwaukee, WI 53202

(414) 276-0200

v.

MILWAUKEE, CITY OF
defendant

Rudolph M. Konrad

[COR LD NTC]

Milwaukee City Attorney's
Office

200 E. Wells St. -

Room 800

Milwaukee, WI 53202

(414) 278-2601

EDWARD E. GILLEN
COMPANY

third-party defendant

DATE	NR.	PROCEEDINGS
10/29/80	1	Complaint filed; summons issued.
11/6/80	2	Marshal's return of service, S&C; City of Milwaukee (Mayor or Clerk-City Hall) served 11/3/80.
11/26/80	3	Stipulation and Order (RWW) that deft may have to and including December 12, 1980, in which to answer or otherwise respond to the complaint.
12/15/80	4	Stipulation and Order (RWW) that the time for the deft to answer or otherwise respond to the complaint is extended to and including January 15, 1981.
1/15/81	5	ANSWER and Counterclaim in Admiralty for the deft.
1/26/81	6	Third-Party Complaint in Admiralty, Summons issued.
1/26/81	7	Pltf's. answer to deft's. counterclaim.
1/29/81	8	Return of service of Third-Party summons; Edward E. Gillin Co. served 1/29/81.
2/13/81	9	Hearing on Status Report (RWW). Status report set for August 27, 1981, at 9:00 a.m.
3/16/81	10	Stipulation that the third-party deft; Great Lakes may have until March 20, 1981 to answer, respond or otherwise plead to pltf's complaint and to the third party complaint.

- 3/27/81 11 Stipulation and Order (RWW) extending time to answer third party complaint; 5/26/81.
- 6/10/81 12 ANSWER of third-party deft.
- 7/8/81 13 Stipulation and Order (RWW) that the time for third party deft. Edward E. Gillen Company to answer or otherwise plead to the third party complaint against it may be extended to and including 6/17/81.
- 8/26/81 14 Notice of Retainer of John W. McMurray for Edward E. Gillen Company.
- 8/27/81 15 Notice of Retainer of John W. McMurray and John W. Norris (additional attorneys) for third party deft. Edward E. Gillen Company.
- 9/24/81 16 Deft's request to inspect and to photograph the Steamer E.M. Ford [sic] her attorney.
- 10/1/81 17 Stipulation grating [sic] pltf an extension of time in which to file its answers and objections to third party deft's first set of interrogatories.
- *9/16/81 18 Status Report (RWW); further status report set for 12/18/81.
- 12/9/81 19 Pltf's Motion for leave to serve and file an amended complaint with attached AMENDED COMPLAINT.

- 12/15/81 20 Third-Party Deft. Edward E. Gillen's notice to take the deposition of Patricia J. Gallagher on 12/22/81 at 10:00 A.M. in Alpena, Michigan, Robert L. Brissette on 12/22/81 at 1:00 P.M. in Bay City, Michigan, Clarence Zolnierrek on 12/22/81 at 3:00 P.M. in Alpena, Michigan, Joseph Zolnierrek on 12/22/81 at 3:30 P.M. in Alpena, Michigan, Richard Jenne on 12/22/81 at 4:00 P.M. in Cheboygen, Michigan, and James B. Sheridan (present address unknown) third assistant engineer on Steamer E.M. Ford on 12/24/79; on 12/22/81 at 4:30 P.M.
- 12/16/81 21 Status Report (RWW); a final pretrial conference is scheduled for 7/16/82.
- 12/23/81 22 Proposed amended complaint.
- 12/22/81 23 Pltf's. motion to restrict scope of depositions of witnesses already depoes [sic].
- 12/22/81 24 Pltf's. brief in support of pltf's. motion to restrict depositions.
- 12/22/81 25 Pltf's. affidavit in support of pltf's. motion to restrict depositions.
- 1/5/82 26 ANSWER to amended complaint by 3rd-party deft. Edward E. Gillen Co.
- 1/5/82 27 Deft Gillen Co. brief in opposition to pltf's. motion to restrict discovery.
- 1/8/82 28 Stipulation and Order (RWW) for extension of time for pltf. to answer.
- 1/18/82 29 Decision and Order denying pltf's. motion to restrict discovery.

- 3/15/82 30 Third-Party Deft. (Edward E. Gillen Company) notice to take the deposition of Cement Division, National Gypsum Company on 4/22/82 at 9:00 A.M. in Milwaukee, Wisconsin.
- 3/15/82 31 Third-Party Deft. (Edward E. Gillen Company) notice to take the deposition of Michael MacDonald on 4/22/82 at 9:00 A.M. in Alpena, Michigan.
- 3/15/82 32 Third-Party Deft. (Edward E. Gillen Company) notice to take the depositions of the following people: James C. Sherman on 4/14/82 at 9:00 A.M. in Bay Village, Ohio; John T. Burke on 4/14/82 at 1:00 P.M. in Cleveland Heights, Ohio; Robert Bowes on 4/15/82 at 9:00 A.M. in Avon Lake, Ohio; Robert M. Sorensen on 4/15/82 at 1:00 P.M. in Fort Belvoir, Virginia.
- 3/16/82 33 Notice of dismissal of The Great Lakes Towing Company of deft. City of Milwaukee
- 4/12/82 34 Stipulation and Order (RWW) that David M. Quale, Esq., of Prosser, Wiedabach & Quale, S.C., hereby is substituted as attorney for third party deft. Edward E. Gillen Company, a corporation, in the place and stead of Arthur J. Vlasak, Esq. and Roger H. Weede, Esq. of deVires, Vlasak & Schallert, S.C.
- 4/30/82 35 Designation of experts filed by third-party deft. Edward E. Gillen Company.

- 5/21/82 36 ANSWERS to pltf's requests for admissions of facts and Genuiness of documents (SECOND SET).
- 6/3/82 37 Deft's designation of experts. (See list for details).
- 6/14/82 38 AMENDED ANSWER AND COUNTERCLAIM IN ADMIRALTY of deft and third party pltf. City of Milwaukee.
- 6/16/82 39 Amendment to designation of experts.
- 6/29/82 40 Stipulation of all parties to extend certain discovery deadlines and to postpone the final pretrial scheduled for 7/23/82.
- 8/2/82 41 Deposition of Lawrence Brissette taken in Traverse City Michigan on 6/8/82.
- 9/14/82 42 Pltfs' motion for order compelling answers to interrogatories to third party deft with brief attached.
- 9/21/82 43 Counsel's statement re pltfs' motion for order compelling answers to interrogatories to third party deft.
- 9/30/82 44 Third party deft. Edward E. Gillen Company's reply brief regarding discovery.
- 10/14/82 45 Third party deft. Gillen's notice to take deposition of Henry E. Mensing on 10/26/82 in Columbus, OH.
- 10/15/82 46 Deft. and third party pltf. and third party deft's motion for an order compelling physical inspection.
- 10/15/82 47 Counsels' statement concerning above motion.
-

- 10/25/82 48 Pltfs' response to reply brief of third party deft. on pltfs' motion for an order to compel answers to its interrogatories.
- 10/25/82 49 Stipulation of all parties as to the authenticity of certain documents produced by the Gillen Company during the week of 7/12/82.
- 10/29/82 50 Pltfs' answer opposing motion of deft. and third party deft. for an order compelling physical inspection.
- 11/5/82 51 Third party deft. Gillen Company's notice to take deposition of Mark Presper on 11/9/82 in Milwaukee, WI 53202
- 11/5/82 52 Third party deft. Gillen Company's notice to take deposition of Michael McDonnell on 11/9/82 in Milwaukee, WI.
- 11/5/82 53 Third party deft. Gillen Company's notice to take deposition of William B. Hoffman on 11/16/82 in Memphis, TN.
- 11/8/82 54 Third party deft. Gillen's motion for permission to file depositions and answers to interrogatories.
- 11/8/82 55 Third party deft. Gillen's reply brief.
- 11/10/82 56 Deft. City of Milwaukee's reply brief to motion to permit entry.
- 11/12/82 57 Third party deft. Gillen's motion for an order reopening discovery to allow the taking of depositions with statement of counsel.

- 11/12/82 58 Decision and Order (RWW) that the
 pltf., Cement Division, National Gyp-
 sum Company shall make the E.M. Ford
 available for inspection by the City of
 Milwaukee and Edward E. Gillen Com-
 pany at a time mutually agreeable to all
 parties during the week of 11/15/82.
- 11/17/82 59 Pretrial report of counsel for all parties.
- 11/18/82 60 Pltfs' answer to motion of third party
 deft. Gillen for an order reopening dis-
 covery to allow the taking of deposi-
 tions.
- 11/19/82 61 Final pretrial conference (RWW); court
 trial on 7/25/83 (est. 5 weeks).
- 11/29/82 62 General order (RWW) permitting filing
 of discovery matters.
- 11/30/82 63 Stipulation and order (RWW) extending
 discovery to 12/22/82.
- 12/6/82 64 Third party deft. Gillen's amended
 notice to take deposition of Mark Pres-
 per on 12/15/82 in Milwaukee, WI.
- 12/27/82 65 Motion of third party deft. Edward E.
 Gillen Co. for an order re-opening dis-
 covery due to newly discovered evi-
 dence with attached exhibits. REOPEN
 DISC.
- 1/3/83 66 Letter from atty. for the City of Mil-
 waukee in favor of reopening of discov-
 ery as appeared in third party deft's
 motion.
- 1/3/83 67 Deft. City's supplemental list of wit-
 nesses.

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|----------|----|--|
| 12/30/82 | 68 | Pltf's supplemental witness list. |
| 1/3/83 | 69 | Third party deft.'s supplemental list of witnesses. |
| 1/6/83 | 70 | ANSWER of Pltfs to motion of third party deft. Edward Gillen for an order reopening discovery |
| 1/17/83 | 71 | Reply of deft. to the answer of pltfs. to motion of third party deft. for an order reopening discovery. |
| 1/17/83 | 72 | Reply of third party deft. to the answer of pltf. to third party deft's motion for order reopening discovery. |
| 1/20/83 | 73 | Pltfs' answer to reply of deft. City of Milwaukee regarding motion of third party deft. for an order reopening discovery. |
| 1/26/83 | 74 | Supplemental reply of third party deft. Gillen regarding its motion for an order reopening discovery. |
| 1/28/83 | 75 | Pltf's response to supplemental reply of third-party deft. regarding its motion for an order reopening discovery. |
| 2/25/83 | 76 | Decision and order (RWW) granting third party deft. Gillen's motion to reopen discovery until 4/15/83 for the limited purpose of discovering matters addressed in the motion; by 5/15/83 each party shall submit to the court and opposing counsel a supplemental list of exhibits and witnesses which must be added to the final pretrial report as the result of the additional discovery permitted by this order. |

- 3/1/83 77 Third party deft's notice to take deposition of Tom Goedwaagen on 3/10/83 in Cleveland, OH.
- 3/1/83 78 Third party deft's notice to take deposition of True LeMon on 3/14/83 in Glen Ellyn, IL
- 3/4/83 79 Third party deft. Gillen's second amended notice to take deposition of Tom Goedwaagen on 3/21/83 in Cleveland, OH.
- 3/9/83 80 Third party deft. Gillen's notice to take deposition of James C. Sherman on 3/22 in Cleveland, OH.
- 3/9/83 81 Third party deft. Gillen's notice to take deposition of present secretary of Great Lakes Protective Asso. on 3/21/83 in Cleveland, OH.
- 3/17/83 82 Pltfs' motion to quash notice of deposition of James C. Sherman. P-QUASH SUBP
- 3/17/83 83 City's brief in opposition to above motion.
- 3/17/83 84 Third party deft's brief in opposition to above motion.
- 3/21/83 85 Pltf's reply memorandum to above motion. (P-QUASH SUBP)
- 3/21/83 86 Pltf's application to add another witness to their witness list with related exhibits.
- 3/18/83 87 Conference call (RWW).

- 3/28/83 88 Third party deft. Gillen's notice to take deposition of the custodian of the record of General Telephone Company on 4/11/83 in Muskegon, MI.
- 3/31/83 89 Transcript of 3/18/83 proceedings.
- 4/25/83 90 Pltf's notice of taking deposition of Lt. E. Scott Varney, NOAA, on May 4, 1983 in Rockville, Maryland.
- 5/6/83 91 Pltf's notice of deposition of Lt. E. Scott Varney, NOAA, on May 19, 1983 in Rockville, Maryland.
- 5/12/83 92 Pltfs' notice to take deposition of Ralph Biggs on 5/17/83 in Erie, PA.
- 5/12/83 93 Pltfs' notice to take deposition of Charles Arnold on 5/17/83 in Erie, PA.
- 5/12/83 94 Pltfs' notice to take deposition of Lt. E. Scott Varney on 5/24/83 in Rockville, MD.
- 5/16/83 95 Deft's supplement to pretrial order.
- 5/16/83 96 Pltfs' motion to quash notice of deposition of Great Lakes with attached brief and affidavit. P-QUASH NOT DEP
- 5/16/83 97 Third party deft's second supplement to pretrial order.
- 5/16/83 98 Deft's addition to supplement the pre-trial order.
- 5/16/83 99 Pltfs' supplemental pretrial report.

- 5/20/83 100 Deft's motion for an order allowing amendment of the notice of deposition of Great Lakes Protective Association. D-AMEND NOT DEP (ORIGINAL IN JUDGE'S FILE).
- 5/20/83 101 Brief in support of above motion and in opposition to pltfs' motion to quash notice of deposition of Great Lakes. (ORIGINAL IN JUDGE'S FILE).
- 5/23/83 102 Addition to pltfs' supplemental pretrial report.
- 5/26/83 103 Pltf's answer in support of motion to quash notice of deposition of GLPA and opposing motion to amend said notice.
- 6/6/83 104 Decision and order (RWW) granting pltfs' motion to quash and denying the City's motion for leave to amend its notice of deposition insofar as the notice requires deponent Hanninen to appear for a deposition in Milwaukee; the court grants leave for the City to depose Mr. Hanninen in Cleveland, but only with respect to the limited matters set forth at the bottom of page 8 of the City's supporting brief.
- 6/17/83 105 Conference call (RWW); court trial on 5/1/84 (est. 22 days).
- 7/14/83 106 Conference call (RWW).
- 7/22/83 107 Protective order (RWW) (see order for details).
- 8/1/83 108 Third party deft. Gillen's third supplement to pretrial order.

- 8/15/83 109 Pltfs' response to Gillen's third supplement to pretrial order.
- 8/25/83 110 Deft and Third Party Deft.'s Notice to take the deposition of Arthur Sullivan on 9/7/83 at 2:00 P.M. in Chicago, Illinois.
- 8/31/83 111 Pltfs' motion to quash notice of deposition of Arthur Sullivan. P-QUASH DEPO
- 9/1/83 112 Deft's response to pltfs' motion to quash deposition of Arthur Sullivan.
- 9/6/83 113 Third party deft. Gillen's submissions in relation to deposition of Arthur Sullivan.
- 9/12/83 114 DECISION AND ORDER (RWW) granting pltf.'s motion to quash the notice of deposition of Arthur Sullivan.
- 9/2/83* 115 HEARING (RWW) - conference call; court will take motion under advisement.
- 9/14/83 116 Pltf.'s reply brief in support of motion to quash and response to defendant city's motion for leave to amend pretrial order.
- 9/15/83 117 Submissions of third-party deft. Edward Gillen Co. in relation to the deposition of Arthur Sullivan.
- 9/16/83 118 Deft. Edward E. Gillen Co.'s letter withdrawing motion concerning its request to add the name of Arthur Sullivan to its witness list.

- 9/16/83 119 Letter from City of Milwaukee regarding pltfs' reply brief in support of motion to quash, etc.
- 10/3/83 120 Pltfs' request for leave to amend pltfs' supplemental pretrial report.
- 10/18/83 121 Deft's motion to disqualify counsel John H. Hanninen & his firm.
- 10/18/83 122 Brief in support of above motion.
- 10/18/83 123 Deposition of John H. Hanninen taken on 7/14/83. (IN JUDGE'S FILE).
- 10/19/83 124 Deposition of Robert F. Gilbert taken on 3/22/82. (IN JUDGE'S FILE).
- 11/3/83 125 Pltfs' brief opposing deft's motion to disqualify counsel.
- 11/15/83 126 Deposition of Thomas Goedewaagen taken on Monday March 21, 1983 at 5:20 p.m. in Ohio. (In Judges File)
- 11/15/83 127 Continued Deposition of Thomas Goedewaagen taken on Wednesday April 6, 1983 called by the third Party Deft. at 9:40 A.M. in Ohio. (In Judges File)
- 11/15/83 128 Deposition of True LeMon taken on April 6, 1983 at 12:00 P.M. in Ohio. (Judges)
- 11/16/83 129 Deft's reply brief in support of its motion to disqualify counsel.
- 11/28/83 130 Pltfs' supplemental brief opposing motion of deft. City of Milwaukee to disqualify counsel.

- 11/29/83 131 Deft's motion to strike supplemental brief on pltfs.
- 12/1/83 132 Third party deft's objections to statements by pltfs. in supplementary brief relating to motion to disqualify counsel.
- 12/19/83 133 Deft's supplemental memorandum supporting motion to disqualify counsel.
- 2/1/84 134 City of Milwaukee's Supplement to Pre-trial Order.
- 2/14/84 135 Plaintiffs' Report to the Court on the inability of the parties to Stipulate the testimony of John Hanninen.
- 2/14/84 136 Letter from Assistant City Attorney Gregg Gunta (copy) to Mr. Spotts.
- 2/14/84 137 Letter from Gregg Gunta requesting that the court review the briefs & support papers of the parties regarding the motion to disqualify & render a decision on this matter.
- 2/14/84 138 Letter from Assistant City Attorney, Gregg Gunta requesting the Court disregarding this document & consider the City's motion based merely upon the briefs heretofore submitted to the court.
- 3/14/84 139 Plaintiffs' Response to the City of Milwaukee's Supplement to Pre-trial Order dated 1/30/84.
- 7/23/84 140 Defendant & Third Party Plaintiff City of Milwaukee's MOTION to Substitute Expert Witness.
- 7/23/84 141 Memorandum in support of Motion to Substitute Expert Witness

- 12/19/84 142 Decision and ORDER (TJC) that pltf's request to amend pretrial report is granted that deft's motion to disqualify counsel is granted; that deft's motion to strike pltf's supplemental brief is denied and that deft's motion to substitute experts is granted.
- 01/02/85 143 Pltf's motion to vacate, alter or amend order of 12/19/84 and for additional findings with attached supporting brief.
- 01/02/85 144 Deposition of James C. Sherman taken on 4/6/83. (In Judge's file)
- 01/02/85 145 Deposition of Thomas Goedewaagen taken on 4/6/83. (In Judge's file)
- 01/02/85 146 Deposition of True LeMon taken on 4/6/83. (In Judge's file)
- 01/02/85 147 Deposition of Thomas Goedewaagen taken on 3/21/83. (In Judge's file)
- 01/02/85 148 Statement of claim on underwriters. (In Judge's file)
- 01/15/85 149 ORDER (TJC) that pltf's motion to vacate, alter or amend the court's order of 12/19/84 is denied.
- 01/15/85 150 Pltfs' Notice of Appeal to the 7th Circuit from the Order disqualifying counsel entered 12/19/84
- 01/16/85 151 Pltfs' Notice of Appeal to the 7th Circuit from the Order disqualifying counsel entered 12/19/84 *and* from the Order denying pltfs' motion to vacate, alter or amend order and for additional findings entered 1/15/85

- 01/17/85 Short record (including both Notices of Appeal) to the 7th Circuit – copies to all parties
- 01/21/85 152 Notice of change of address, and firm name of John W. McMurray and John W. Norris.
- 01/23/85 153 Letter from 3rd-party pltf designating certain items for the record on appeal (copy of docket sheet attached highlighting items designated)
- 01/24/85 154 Pltf's motion to stay further proceedings pending appeal.
- 01/24/85 155 Pltf's brief in support of above motion.
- 01/24/85 156 Pltf's motion to stay operation of disqualification pending appeal.
- 01/24/85 157 Pltf's brief in support of above motion.
- 01/25/85 158 Pltf's letter designating certain items for the record on appeal (copy of docket sheet attached indicating items designated)
- 02/01/85 159 Gillen Co.'s response to pltf's motion to stay proceedings during appeal.
- 02/06/85 160 Deft. City of Milwaukee's letter advising that they do not oppose the pending motions to stay proceeding pending appeal.
- 02/05/85 161 ORDER (TJC) denying pltf's motions for stay pending appeal.
- 02/11/85 162 Scheduling status conference; FPT set for 12/19/85; court trial dates set as follows: 1/6/86, 9/2/86, 1/5/87 and 3/7/88.

- 02/15/85 163 Gillen Company's fourth supplemental pretrial report.
- 02/21/85 164 ORDER (TJC) following scheduling conference; see dates of 02/11/85.
- 09/06/85 165 Certified copy of order from Seventh Circuit; the motion for an order dismissing the appeal is granted and this appeal is dismissed for lack of jurisdiction; further, that appellant's request for a writ of mandamus or an order requiring certification by the district court is denied.
- 12/16/85 166 Third party deft's trial brief.
- 12/16/85 167 Third party deft's version of disputed facts.
- 12/16/85 168 Pretrial report.
- 12/16/85 169 Pltf's statement of facts and brief of applicable law.
- 12/16/85 170 Deft. and third party pltf. City of Milwaukee's brief re: duties of a master and a wharfinger.
- 12/16/85 171 Deft. and third party pltf's statement of disputed facts.
- 12/18/85 172 Deft. and third party pltf. and third party deft's motion to strike pltf's "Statement of Facts and Discussion of Applicable Law" filed on 12/16/85.
- 12/19/85 173 FINAL PRETRIAL CONFERENCE (TJC).
- 12/23/85 174 Supplemental pretrial report.
- 01/09/86 175 Trial Memorandum.

- 01/10/86 176 Deft's trial brief re: admissibility of 1984 U.S. Coast Pilot Provisions.
- 01/24/86 177 COURT TRIAL (TJC) commencing on 01/06/86 and concluding on 01/24/86; post trial briefing schedule set by court.
- 01/28/86 178 Deft's letter brief re: Exhibits 596 and 615.
- 02/12/86 179 ORDER (TJC); DISMISSING all claims against 3rd party-def. Edward G. Gillen Co. nunc pro tunc 1/8/86. EOD 2/14/86
- 02/28/86 180 Pltf's post trial brief.
- 03/03/86 181 Deft's post trial brief.
- 03/21/86 182 Deft's response to pltf's post trial brief.
- 03/21/86 183 Pltf's response to deft's post trial brief.
- 06/30/89 184 DECISION & ORDER (TJC) by agreement of the parties and order of the court, only the liability issues were tried before the court during the first phase of this bifurcated trial; consequently, the court has made no determination of damages; accordingly, the court ORDERS that, within 30 days of the date of this Decision and Order, Cement Division and the city of Milwaukee shall file a stipulation of damages; failing this, a second phase of this trial will be scheduled to determine damages. Copy mailed to parties. E.O.D. 7/5/89.
- 07/13/89 185 Plaintiff's motion for enlargement of time.
- 07/13/89 186 Affidavit of Harney B. Stover.

- 07/17/89 187 Order (TJC); parties shall comply with the Court's order of 6/20/89 and if necessary, trial of this matter will commence at 9:30 a.m. on 10/16/89.
- 07/28/89 188 Pltff's Notice of Appeal to the 7th Circuit Court of Appeals from orders entered 6/30/89, 12/19/84, 1/15/85.
- 07/31/89 Short record mailed, copies to counsel.
- 08/18/89 189 Plaintiff's motion for stay of proceedings pending outcome of appeal.
- 08/23/89 190 Order (TJC); the plaintiffs' motion for stay pending outcome of appeal is granted. The Clerk of Court is instructed to close this case for statistical purposes. EOD 8/25/89.
- 09/07/89 191 Index to transcript of trial testimony.
- 09/07/89 192 Trial transcript dated 1/6 & 7, 1986, Vol. I
- 09/07/89 193 Trial transcript dated 1/8/86, Vol. II.
- 09/07/89 194 Trial transcript dated 1/10/86, Vol. III.
- 09/07/89 195 Trial transcript dated 1/14/86, Vol. IV.
- 09/07/89 196 Trial transcript dated 1/14/86, Vol. V.
- 09/07/89 197 Trial transcript dated 1/16/86, Vol. VI
- 09/07/89 198 Trial transcript dated 1/21/86, Vol. VII
- 09/07/89 199 Trial transcript dated 1/23/86, Vol. VIII.

- 09/15/89 Record on appeal #89-2631 mailed to the 7th Circuit Court of Appeals consisting of 4 bound volumes pleadings, 10 volumes transcripts, 10 volumes depositions, 6 loose volumes pleadings, 4 boxes of exhibits - CERTIFICATE OF CLERK.
- 01/30/90 Contents of record returned from Court of Appeals
 4 vol. pleadings
 10 vol. transcripts
 10 vol. depositions
 6 vol. loose pleadings
 3 boxes exhibits - 2 black binders
 (entire record)
- 01/30/90 200 Certified copy of order from U.S. Court of Appeals; the petition for rehearing is denied.
- 01/30/90 201 Bill of Costs taxed by Court of Appeals; costs taxed in favor of Cement Division in the sum of \$1,166.89.

ICMS

- Proceedings include all events. TERMED
 2:80cv1001 Cement Div Natl Gyps APPEAL
 v. Milwaukee, City of
- 6/30/89 184 DECISION AND ORDER: by Judge Thomas J. Curran dismissing case (cc: all counsel) (eeb) [Entry date 12/21/92]
- 12/14/92 202 ORDER by Judge Thomas J. Curran Case reopened Status conference set for 12/17/92. (cc: all counsel) (eeb) [Entry date 12/21/92] [Edit date 12/21/92]

- 12/17/92 203 HEARING MINUTES: Stipulation for interlocutory judgment to be filed. (eeb) [Entry date 12/21/92]
- 12/17/92 204 ORDER by Judge Thomas J. Curran: IT IS ORDERED that a statement of stipulated facts be submitted and filed with the court on or before 1/5/93/ IT IS FURTHERED ORDERED that joint briefs in support of their respective positions will be submitted by the parties on or before 2/2/93 and simultaneous reply briefs will be filed with the court on or before 2/16/93. (cc: all counsel) (eeb) [Entry date 12/21/92]
- 12/17/92 205 STIPULATION and ORDER by Judge Thomas J. Curran: That an interlocutory partial judgment be and the same hereby is entered in accordance with the above and foregoing stipulation effective 12/4/92. (cc: all counsel) (eeb) [Entry date 12/21/92]
- 12/17/92 206 SATISFACTION OF INTERLOCUTORY PARTIAL JUDGMENT. (eeb) [Entry date 12/21/92]
- 1/5/93 207 AGREED STATEMENT of post-casualty facts. (amb)
- 1/28/93 208 STIPULATION and ORDER for extension of time by Judge Thomas J. Curran: (cc: all counsel) (bjp) [Entry date 02/01/93]
- 3/1/93 209 BRIEF FILED by plaintiff Cement Div Natl Gyps on issue of prejudgment interest (bjp)

- 3/1/93 210 BRIEF by defendant Milwaukee, City of in opposition to the awarding of prejudgment interest (ajf) [Entry date 03/02/93]
- 4/1/93 211 REPLY brief in opposition to the awarding of prejudgment interest by defendant Milwaukee, City of (bjp) [Entry date 04/02/93]
- 4/1/93 212 REPLY brief on issue of prejudgment interest by plaintiff Cement Div Natl Gyps (bjp) [Entry date 04/02/93]
- 5/28/93 213 ORDER that the plaintiffs' request for prejudgment interest on the amount paid in settlement by the defendant is denied. All of the issues in this case having been resolved, this action is dismissed upon its merits. The Clerk shall enter a final judgment by Judge Thomas J. Curran (cc: all counsel) (bjp) [Entry date 06/02/93]
- 5/28/93 214 JUDGMENT: the City of Milwaukee is not liable to the plaintiff for payment of prejudgment interest on the amount paid in settlement - deputy clerk terminating case (cc: all counsel) (bjp) [Entry date 06/01/93]
- 6/24/93 215 NOTICE OF APPEAL by plaintiff from Dist. Court decision [214-2], [213-1] (cc: all counsel) (sln)
- 6/24/93 216 JURISDICTIONAL STATEMENT by plaintiff (cc: all counsel) (sln)
- 6/24/93 - RECEIVED re [215-1] fee in amount of \$ 105 (Receipt #65464) (sln)

- 6/24/93 - SHORT RECORD Transmitted to USCA
(cc: all counsel) (sln)
 - 2/14/94 - RECORD on Appeal sent to 7th Circuit
Court of Appeals, USCA 93-2545, re
[215-1], consisting of 4 vol pleadings, 10
transcripts (Nos. 89, 191-199), 4 boxes of
exhibits, 6 loose pleadings (nos. 96, 101,
59, 148, 168, and 184 (cc: all counsel)
(amb)
-

UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF WISCONSIN

CEMENT DIVISION, NATIONAL GYPSUM
COMPANY, et al.,

Plaintiffs,

Case No. 80-C-1001

vs.

Judge Thomas J. Curran

CITY OF MILWAUKEE,

(Filed January 5, 1993)

Defendant and
Third-Party Plaintiff,

vs.

EDWARD E. GILLEN COMPANY,

Third-Party Defendant.

AGREED STATEMENT OF POST-CASUALTY FACTS

Introduction

This Agreed Statement of Post-Casualty Facts sets forth in a simple and direct manner the litigation history of the case which has been pending in the United States District Court for the Eastern District of Wisconsin and/or the United States Court of Appeals for the Seventh Circuit for over twelve years. The purpose of the Agreed Statement is to establish a basis for the parties to submit to the District Court the issue of prejudgment interest which is the only outstanding issue in the case that remains unsettled and contested. The Agreed Statement does not limit the facts to which the parties may refer in their arguments or to which the Court may refer in its

decision, but only assists in providing focus and order to the briefing and decision. In order to accomplish this goal, the Agreed Statement will list by year the key events (primarily litigation events) in the case.

In this Agreed Statement, reference to the various parties will be abbreviated in order to clarify and simplify the statement. The plaintiff, Cement Division, National Gypsum Co., will be referred to as "National Gypsum" or in some instances "Huron Cement." The defendant, City of Milwaukee, will be referred to as the "City." Third-party defendants in the litigation, i.e., Edward E. Gillen Company and Great Lakes Towing Company, will be referred to as "Gillen" and "Great Lakes Towing" respectively.

1979

On December 24, the S/S EM FORD, loaded with 5,800 tons of bulk cement, was moored in a City-owned slip in Milwaukee's outer harbor. In the course of a severe northeasterly storm, the FORD, over an eighteen-hour period, broke loose from its moorings, battered against the headwall of the slip, tore holes in its hull, took on water and sank to the bottom of the slip. The FORD was subsequently raised and repaired at a cost of \$6,175,209.25. The value of the lost cement cargo was \$319,000.00. The cost of repairs to the City's dock and headwall was \$192,432.18.

1980

On October 29, the owner of the vessel, National Gypsum, brought this suit in admiralty pursuant to 28 U.S.C. sec. 1333 against the City seeking \$4.5 million in damages. The suit alleged, among other things, that the City had negligently breached its duty as a wharfinger by failing to warn National Gypsum of a hidden danger in the berthing slip and by misrepresenting conditions which could occur within the slip during a storm. The case was assigned to U.S. District Judge Robert W. Warren.

1981

On January 15, the City denied fault and alleged in a counterclaim that National Gypsum was negligent in leaving the FORD moored in an outer harbor slip in winter virtually unmanned, with no means aboard of monitoring weather or summoning tugs or a pilot for assistance. The City sought to recover \$250,000 for damages caused by the vessel crashing against the City's docks and headwall. Later that month, the City served a third-party complaint on Great Lakes Towing and Gillen, alleging that their negligence caused or contributed to the casualty.

On April 8, National Gypsum commenced discovery when it served upon the City its first set of interrogatories and requests for production of documents. In addition to the interrogatories and requests for production submitted and made by the various parties, the following depositions were taken in 1981:

At the Behest of the City:

Robert L. Brissette	First Mate-EM Ford	7/16/81
Patrick J. Gallagher	Master-EM Ford	7/16/81
William Rudzik	Electrical Engineer	12/15/81
	Uihlein Electric, involved in mooring of EM Ford on December 11, 1979	
Lt. Randall	Parmentier	12/15/81
	Performed Coast Guard investigation of sinking	
William Wade	Surveyor and	12/16/81
	Independent Consultant for Gillen	
Salvatore Gumina	Foreman for Gillen	12/16/81
Capt. Thomas Parks	Temporary Master of	12/17/81
	EM Ford on 12/24/79	
Robert F. MacLaren	Tugboat Captain for	12/17/81
	Great Lakes Towing	
Donald Jackson	Executive Vice	12/17/81
	President of Gillen	
Jack Bohl	Tugboat Captain for	12/17/81
	Great Lakes Towing	

At the Behest of National Gypsum:

Stanley Blawas	Dock Superintendent,	9/15/81
	Port of Milwaukee	
Wright B. Garvey	Harbor Master, City	9/15/81
	of Milwaukee	
Beverly Strike	Adm. Assistant, Port	9/15/81
	of Milwaukee	

Earl Anderson	Harbor Engineer, City of Milwaukee	9/16/81
James Haskell	Deputy Port Director, Port of Milwaukee	9/16/81
Admiral Roy Hoffman	Port Director, Port of Milwaukee	9/16/81

At the Behest of Gillen:

James W. Gaskell	Superintendent of Vessels for Huron Cement	10/7/81
Eugene P. Stafford	Fleet Captain for Huron Cement	10/7/81
Norman Martinson	Fleet Engineer for Huron Cement	10/7/81
Walter Heckl	Employee of Advance Boiler Co. in Milwaukee	12/15/81

In December, National Gypsum filed an amended complaint to include all of the vessel and cargo insurers as parties plaintiff and to increase the claim for damages to \$6.5 million.

1982

On March 16, Great Lakes Towing was dismissed from the case. On June 14, the City filed an amended answer and counterclaim. On July 1, the parties stipulated to extend certain discovery deadlines and to postpone the final pretrial conference previously scheduled for July 23, 1982. On June 16, all parties stipulated to completing discovery by October 15, 1982, and having a final pretrial conference prior to November 1, 1982.

On November 12, Gillen moved the court for an order reopening discovery. On November 30, discovery was extended by stipulation and order to December 22, 1982. On November 19, the court ordered all updated witness lists to be filed by January 3, 1983, and scheduled a five-week trial to the court to commence on July 25, 1983.

During 1982, the following depositions were taken:

At the Behest of Gillen:

Clarence Zolnierек	Second Mate aboard EM Ford 12/79	1/20/82
Joseph Zolnierек	First Assistant Engineer aboard EM Ford 12/79	1/20/82
Robert J. Malaski	An Oiler aboard EM Ford 12/24/79	1/21/82
James B. Sheridan	Third Engineer aboard EM Ford 12/24/79	1/21/82
Robert L. Brissette	First Mate EM Ford	1/22/82
Patrick J. Gallagher	Master of EM Ford	1/22/82
John T. Burke	Plaintiffs' Expert on Questions Rel. to Masters of Vessels	4/14/82
James C. Sherman	Surveyor for U.S. Salvage Assn. and Plaintiffs' Expert	4/14/82
Robert Francis Bowes	Plaintiffs' Weather Expert	4/15/82
Edward J. Price	Director of Governmental & Public Affairs for Huron Cement	4/28/82

Robert M. Sorenson	Plaintiff's Expert re wave action through gap in breakwall	5/4/82
Henry E. Mensing	Vice President of Operations, Huron Cement 1979	10/26/82
William B. Hoffman	President of Huron Cement at time of sinking	12/8/82
John M. McDonnell	Director of Distribution for Huron Cement, 1979	12/8/82

At the Behest of the City:

Richard Jenne	Able Seaman and Wheelsman aboard EM Ford 12/79	1/20/82
Robert F. Gilbert	Secretary of Great Lakes Protective Association	3/22/82
Nicholas Kadinger	Employee of construction company that repaired the bollards on Slip No. 1	4/21/82
Andrew La Borde	Great Lakes marine buff; took photos of EM Ford breaking away on 12/24/79	4/21/82
Paul Wiening	Great Lakes marine buff; took photos of EM Ford breaking away on 12/24/79	4/21/82
Roger Berg	Employee of company that repaired bollards at Slip No. 1	4/21/82

At the Behest of National Gypsum:

Keith Iverson	Employee of Gillen involved in events on Jones Island 12/24/79	4/28/82
Francis Nakles	Foreman for Gillen involved in events of 12/24/79	4/28/82
John Running	Superintendent of Gillen's Becher St. Yard involved in events of 12/24/79	4/28/82
Michael Schmidt	Laborer for Gillen involved in events of 12/24/79	4/28/82
Joseph Lundeen	Foreman for Gillen involved in events of Jones Island 12/24/79	4/28/82
Adalore Pare	Pile Driver for Gillen	4/29/82
Terry Pare	Laborer, Gillen	4/29/82
Stanley Catarozoli	Employee of Gillen who worked aboard the EM Ford	7/15/82
Mark Rhyner	Field Engineer for Gillen involved in events of 12/24/79	7/15/82
Andrew Jackson	Chairman of the Board of Directors of Gillen	12/15/82
Gary Jackson	Executive Vice President, Gillen 12/79	12/15/82

Statement Taken

Kenneth W. Kutz (Statement taken - 6/7/82
 no deposition)
 Security Guard for
 Port of Milw.

1983

On February 25, the court granted Gillen's motion that discovery be reopened until April 15, 1983. The court ordered that exhibit and witness lists be filed by May 15, 1983. On June 17, the trial was rescheduled to May 1, 1984 to conclude May 31, 1984. On October 18, the City filed its motion to disqualify lead counsel for National Gypsum. After briefing and supplemental briefing, the motion was finally at issue before the Court as of December 19, 1983.

In 1983 the following depositions were taken:

At the Behest of Gillen:

Thomas Goedwaagen	Surveyor for U.S. Salvage Assn. in Cleveland	3/21/83 and 4/6/83
Robert F. Gilbert	Secretary of Great Lakes Protective Association	3/22/83
True LeMon	Surveyor for U.S. Salvage Assn. in Chicago	4/6/83
James C. Sherman	Surveyor for U.S. Salvage Assn. and Plaintiffs' Expert	4/6/83

At the Behest of National Gypsum:

Charles Arnold	Official of Litton Industries, owner of "Presque Isle"	5/17/83
Ralph Biggs	Official of Litton Industries, owner of "Presque Isle"	5/17/83
Lt. E. Scott Varney	Official of NOAA responsible for updating "U.S. Coast Pilot"	5/24/83

At the Behest of the City:

John H. Hanninen	Lead Counsel of Plaintiffs and attorney-in-fact for Great Lakes Protective Association.	7/14/83
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1984

On January 25, the case was transferred, at the instance of the Court, from Judge Warren to Judge Thomas J. Curran and on December 19 the court granted the City's motion to disqualify counsel for National Gypsum.

1985

On January 15, National Gypsum filed a notice of appeal from the order disqualifying counsel, and several days later National Gypsum moved to stay further proceedings in the trial court pending the outcome of the appeal of the disqualification order.

On February 5, the court denied the motion to stay proceedings in the District Court. Several days later National Gypsum moved the United States Court of Appeals for the Seventh Circuit for an order to stay proceedings in the trial court and to stay the effective disqualification order to allow counsel to appear on appeal.

On February 11 the District Court scheduled the case for trial on January 6, 1986 as the fourth civil case on its calendar.

On May 15, the Court of Appeals denied the motion to stay proceedings in the District Court, but allowed disqualified counsel to participate in the appeal.

On June 11, the City moved to dismiss the appeal pending in the Seventh Circuit, because of a U.S. Supreme Court decision just rendered, and on August 6 the Court of Appeals granted the City's motion to dismiss.

On September 3 the court informed the parties that the trial scheduled for January 6, 1986 was now the number one case on the civil trial calendar. A Final Pre-trial Conference was held by the Court on December 19.

1986

The trial of this case commenced on January 6, 1986 and concluded on January 24, 1986. Because the trial was bifurcated, the liability issue was tried first to the District Court without a jury. Gillen settled with National Gypsum and was dismissed from the case effective January 8.

On March 3 the parties filed their post-trial briefs and on March 21 their post-trial responsive briefs. Decision was pending for the balance of the year.

1987

Decision pending.

1988

Decision pending.

1989

On June 30, 1989, the District Court issued its decision. Based upon its findings, the District Court held both National Gypsum and the City to have been negligent and held National Gypsum 96 percent at fault and the City 4 percent at fault.

The court in its decision ordered the parties to file a stipulation of damages within thirty days.

On July 28, National Gypsum appealed the decisions of the District Court on liability and disqualification of counsel to the United States Court of Appeals for the Seventh Circuit.

On August 18, National Gypsum moved the District Court to stay proceedings pending the outcome of the appeal. This motion was granted on August 23.

On August 21, National Gypsum moved for an extension of time to file its brief, and on August 25, the Court of Appeals issued a briefing schedule which required National Gypsum to file its brief on November 1, 1989,

the City to respond by December 1, 1989, and National Gypsum to reply by December 15, 1989. On August 25, the City moved the Court of Appeals to extend the time to file its responsive brief which the court granted on November 1 and ordered that the City's responsive brief was due on January 15, 1990.

On November 20, the City moved to dismiss the appeal of the District Court's order of disqualification of counsel.

1990

On January 16, the Court of Appeals informed the parties that the motion to dismiss the disqualification order had been referred to the Merits Panel.

On January 17, National Gypsum moved the court for an order extending the time in which to file its reply brief, which the court granted and ordered that the reply brief be filed by January 21, 1990.

Oral argument in the case was had on April 13.

On October 16, 1990, the United States Court of Appeals for the Seventh Circuit held that the District Court's apportionment of fault was clearly erroneous and reapportioned fault two-thirds upon National Gypsum and one-third upon the City. The Court also found that it lacked jurisdiction, at that time, to review the trial court's disqualification order.

On October 30, the City filed a Petition for Rehearing with Suggestion for Rehearing *en banc*, which the Court of Appeals denied on November 21, 1990.

1991

On February 14, 1991, the City filed a Petition for a Writ of Certiorari in the Supreme Court of the United States to review the decision of the United States Court of Appeals for the Seventh Circuit. Specifically, the Court was asked to review the following two questions:

1. Does a federal court of appeals, which has found an apportionment of fault by a district court to be clearly erroneous under Fed. R. Civ. P. 52(a), have the authority to make new findings of facts, reweigh the evidence and reapportion fault?

2. Should the admiralty rule that liability for damages is to be allocated among the parties proportionately to the degree of their fault be changed so that the relative cost of avoiding the casualty becomes a substantial factor in apportioning fault?

On March 18, National Gypsum filed its response to the petition.

On April 15, the Supreme Court denied the petition.

Shortly thereafter, National Gypsum and the City began negotiations to attempt to arrive at a stipulation of damages.

On December 5, the City's surveyor and National Gypsum's surveyors came to an agreement with reference to certain major aspects of the damages claim.

1992

On June 14, counsel for National Gypsum and the City Attorney's Office agreed to recommend settlement of the Plaintiffs' damage claim for \$1,677,541.86, excluding the issue of prejudgment interest, which was to be submitted to the District Court for a decision.

On June 28, the Common Council of the City of Milwaukee approved the settlement as proposed. A few days earlier National Gypsum and its insurers had approved and authorized the proposed settlement.

The manner in which the stipulation of damages was arrived at is described in the memo attached hereto entitled "Analysis of the Damage Claim of the EM Ford's Owners and Underwriters."

On December 4, the City paid National Gypsum and its insurers \$1,677,541.86 in settlement of their case, excluding their claim for prejudgment interest which is to be submitted to the District Court for decision.

Dated at Milwaukee, Wisconsin this 5th day of January, 1993.

/s/ Harney B. Stover, Jr.
Harney B. Stover, Jr.,
 Esq.
 WI 346701 GC
 DAVIS & KUELTHAU,
 S.C.
 111 East Kilbourn,
 #1400
 Milwaukee, WI 53202
 Tel: (414) 276-0200
 Atty. for Plaintiffs

/s/ Rudolph M. Konrad
Grant F. Langley,
 City Attorney
 Rudolph M. Konrad,
 Deputy City Atty.
 City of Milwaukee
 200 East Wells Street,
 #800
 Milwaukee, WI 53202
 Tel: (414) 278-2601
 Attys. for
 Defendant,
 City of
 Milwaukee

**ANALYSIS OF THE DAMAGE CLAIM
 OF THE E.M. FORD'S OWNERS
 AND UNDERWRITERS**

The damage claim of the E.M. Ford's owners and underwriters can be categorized as follows: (1) repair costs, (2) survey costs, (3) cargo loss, and (4) losses to the owner not covered by insurance. [Page references are to Statement of Claim of Underwriters, June 16, 1981, unless otherwise indicated.]

1. Repair Costs

The cost of repairs to the Ford was \$5,790,397.44. [p. 191] Of this amount, \$5,785,397.44 was paid by the

underwriters and \$5,000.00 was paid by the owners. (The \$5,000 was a "deductible" under the policy.) [p. 193]

It has been agreed by the surveyors for the ship and the City that the total cost of repair, \$1,057,565.44 was of no financial benefit to the owner, i.e., refloating the vessel, cargo removal, temporary repairs, preliminary submersion treatment, etc.; but that the balance of the repairs, which were permanent and cost \$4,732,832.00, would benefit the owner by reducing future maintenance costs. The City and the ship disagree as to the amount of the benefit. The City maintains that the benefit is equal to 19% of the cost of the repairs, while the ship maintains that it is equal to 11.5%. [See surveyors' memo of December 5, 1991]

In addition, the City maintains that the permanent repairs increased the value of the Ford by an amount equal to 15%, while the ship maintains there was no increase in the value of the vessel. [See surveyors' memo] The following are the calculations based upon the parties' respective positions:

<u>Ship's Portion</u>	<u>Damages</u>	<u>City's Portion</u>
\$4,732,832.00	a. Gross repairs of Benefit to Owner	\$4,732,832.00
<u>-544,275.68</u>	b. Less 11.5% (ship's opinion)	
	c. Less 19% (City's opinion)	
		<u>-899,238.08</u>
		\$3,833,593.92

	d. Less add'l 15% (City's opinion)	<u>-709,924.80</u>
\$4,188,556.32	e. Net Repairs of Benefit to Owner	\$3,123,669.12

Difference between the two positions is \$1,064,887.20. The ship and the City have agreed to compromise this difference by one-half, making the net repairs of benefit to the owner \$3,656,112.72. [$3,123,669.12 + (1,064,887.20 - 2) = 3,656,112.72$]. Of this amount, the City is liable to pay one-third or \$1,218,704.24.

In addition, the City is required to pay one-third of the repair costs that were of no benefit to the owner (\$1,057,565.44), which is \$352,521.81.

The liability of the City for cost of vessel repair, therefore, is \$1,571,226.05 ($\$1,218,704.24 + \$352,521.81$).

2. Survey Costs

The owners and the underwriters undertook a survey of the damages. A survey was made by North American Marine (\$68,897.86) and the United States Salvage Association (\$66,329.12). [p. 191] These costs are proper items of damage and the City agrees to pay one-third of the total or \$45,075.66.

Additional costs (\$47,500) were incurred to prepare the "Statement of Claim of Underwriters," but because the document was prepared solely for insurance purposes, no claim has been made for those costs. [p. 191]

3. Cargo Loss

The ship's cargo of 5,800 short tons of cement was lost. The City and the ship have agreed to settle the cargo loss claim at an amount equal to the market price of cement on the date of the casualty times the amount of cement lost (5,800 short tons @ \$55/ton = \$319,000). The City is liable for one-third of that amount, or \$106,333.33. [See surveyor's memo]

The ship might have additional claims arising out of transportation and disposal of the ruined cement, but has agreed not to pursue these claims in order to more promptly resolve this matter.

4. Losses to the Owner not Covered by Insurance

This item of damages consists of various costs incurred in the course of repair of the vessel, but were not covered by insurance policies. The total amount allocated to "owner's account" was \$261,489.85.

Deleted from the "owner's account" were \$11,905.02 of dry dock charges that were unrelated to the casualty. [pp. 106, 128-29] (Balance \$249,584.83) The remainder consisted of \$32,464.19 in overtime charges, [p. 186] \$2,194.00 in oil contract cancellation charges, [p. 139] and \$214,926.54 in cargo removal charges. [pp. 95, 97, 105, 106-07, 113] These latter items are damages for which the ship's owner is entitled to collect because they were incurred as a direct result of the casualty, although not covered by insurance. The cargo removal charges allocated to the owner's account represents 38% of the total

cost of cargo removal. Sixty-eight percent of the cost was allocated to the hull underwriter because that portion of the work (chipping and cleaning hardened cement off the hull) was necessarily part of the repair of the hull. The remaining 38% (removed from the ship) had to be incurred to repair the ship, although it was not covered by the policies in effect.

The ship, had it not sank, would have had to incur the cost of cargo removal; however, because the ship owned the cement, the dock, the storage facility, and would have removed the cargo with its own employees, the cost of removal would have been quite small. The City has agreed not to seek this off-set in light of the ship's agreement not to pursue transportation and disposal costs discussed under cargo loss.

The portion of the "owner's account" for which the City is liable is \$83,194.94. (\$249,584.83 - 3)

5. Offset

The ship is liable to pay to the City two-thirds of the City's damages, which consist of the cost of repair to the City's dock.

At the time the dock damage was surveyed, it was estimated that the cost of repairs would be \$274,424.82 and it was further agreed that \$70,403.22 was for work to be done for the benefit of the City and \$204,021.50 to repair damages caused by the ship. Of the latter amount, \$9,461.59 was in dispute. [See Survey of Damage to Dock, Feb. 25, 1982, pp. 13-14, 16]

The actual repair cost was \$263,725.31. Subtracting half the disputed sum (\$4730.80), the cost was \$258,993.51. To calculate the portion that should be attributed to the City the \$258,993.51 was multiplied by the ratio of the ship/City apportionment agreed to in the original survey. $(70,403.22/274,424.82 = 25.7\% \times 258,993.51 = 66,561.33)$.

This leaves a balance of \$192,432.18 of repair costs attributable to damage caused by the ship. The City is entitled to credit two-thirds of that amount, which is \$128,288.12.

6. Conclusion

The City is liable to pay the owner and underwriter of the E.M. Ford the following items of damages:

1. Repair Costs	\$1,571,226.05
2. Survey Costs	45,075.66
3. Cargo Loss	106,333.33
4. Owner's Loss	<u>83,194.94</u>
Subtotal	\$1,805,829.98
Less: Offset	<u>(128,288.12)</u>
TOTAL	\$1,677,541.86

UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF WISCONSIN

CEMENT DIVISION, NATIONAL GYPSUM COMPANY, et al., Plaintiffs, v. CITY OF MILWAUKEE, Defendant.	STIPULATION FOR INTERLOCUTORY PARTIAL JUDGMENT AND SATISFACTION AND INTERLOCUTORY PARTIAL JUDGMENT Civil Action 80-C-1001 (Filed December 17, 1992)
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STIPULATION

IT IS HEREBY STIPULATED by and between the parties, by their respective counsel, that an interlocutory partial judgment be entered in this case in favor of the plaintiffs, Cement Division, National Gypsum Company, et al., and against the City of Milwaukee, in the amount of One Million Six Hundred Seventy-Seven Thousand Five Hundred Forty-One and 86/100ths (\$1,677,541.86) Dollars, including all costs and attorneys' fees, but excluding prejudgment interest and any costs incurred in connection therewith. [The questions of whether prejudgment interest should be awarded in this case, and if so, the rate of interest will be submitted by the parties to the court for decision.]

IT IS FURTHER STIPULATED that a satisfaction of interlocutory partial judgment be entered because the interlocutory partial judgment has been paid.

IT IS FURTHER STIPULATED that the effective date of both the interlocutory partial judgment and the satisfaction of interlocutory partial judgment be December 4, 1992.

Dated: December 4, 1992

/s/ Harney B. Stover, Jr.
Harney B. Stover, Jr.
Attorney for Plaintiffs

GRANT F. LANGLEY
City Attorney

Date: December 4, 1992

/s/ Rudolph M. Konrad
Rudolph M. Konrad
Deputy City Attorney
Attorney for Defendant

INTERLOCUTORY PARTIAL JUDGMENT

IT IS HEREBY ADJUDGED that an interlocutory partial judgment be and the same hereby is entered in accordance with the above and foregoing stipulation effective December 4, 1992.

Dated at Milwaukee, Wisconsin this 17th day of Dec., 1992.

BY THE COURT:

/s/ Thomas J. Curran
Hon. Thomas J. Curran
United States District Judge

UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF WISCONSIN

CEMENT DIVISION,
NATIONAL GYPSUM
COMPANY, et al.,

Plaintiffs,

v.

CITY OF MILWAUKEE,

Defendant.

SATISFACTION AND
INTERLOCUTORY
PARTIAL JUDGMENT

Civil Action 80-C-1001

(Filed December 17, 1992)

The interlocutory partial judgment entered in the above-entitled action on the 4th day of December, 1992, in favor of plaintiff and against the defendant in the amount of One Million Six Hundred Seventy-Seven Thousand Five Hundred Forty-One and 86/100ths (\$1,677,541.86) Dollars, having been fully paid and satisfied, the clerk of said court is hereby authorized to satisfy and discharge said interlocutory partial judgment of record.

Witness my hand and seal this 4th day of December, 1992.

/s/ Harney B. Stover, Jr.

Harney B. Stover, Jr.,
Attorney for Plaintiffs

STATE OF WISCONSIN)
) ss.
 MILWAUKEE COUNTY)

Personally came before me this 4th day of December, 1992, the above-named Harney B. Stover, Jr., and acknowledged the execution of the aforementioned satisfaction of interlocutory partial judgment, having thereunto been duly authorized.

/s/ Linda J. Gillet
 Notary Public, State of
 Wisconsin
 My Commission 9/8/96

UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF WISCONSIN

CEMENT DIVISION, NATIONAL
GYPSUM COMPANY; REED &
BROWN, INC.; NEW YORK
MARINE MANAGERS, INC.;
ALLSTATE INSURANCE
COMPANY, c/o American
Marine Underwriters, Inc.;
HIGHLANDS INSURANCE
COMPANY; EMPLOYERS
CASUALTY COMPANY OF
TEXAS, c/o Texas Marine
Underwriters Agency, Inc.;
DONALD H. MILLER, INC.; U.S.
FIDELITY AND GUARANTEE
COMPANY; GREAT LAKES
PROTECTIVE ASSOCIATION; THE
ATLANTIC COMPANIES; LLOYDS
UNDERWRITERS, INSTITUTE
COMPANIES, INCLUDING:
COMMERCIAL UNION
ASSURANCE CO. LTD., "I" A/o.
ANDREW WEIR INSURANCE CO.
LTD., ENGLISH & AMERICAN
INSURANCE CO. LTD., "M" 1
A/o., ORION INSURANCE CO.
LTD., "T" A/o. YASUDA FIRE &
MARINE INSURANCE CO. (U.K.)
LTD., "T" A/o., ATLAS
ASSURANCE CO. LTD., "T" A/o.,
PHOENIX ASSURANCE CO. LTD.,
BRITISH LAW INSURANCE CO.
LTD., ROAD TRANSPORT AND

Case No.
80-C-1001

Judge Thomas J.
Curran

GENERAL INSURANCE CO. LTD.,
 INSURANCE COMPANY OF
 NORTH AMERICA (U.K.) LTD.,
 "G" A/o., INSURANCE
 COMPANY OF NORTH AMERICA
 (U.K.) LTD., "O" A/o., HOME
 INSURANCE CO. LTD., "X" A/o.,
 LONDON & HULL MARITIME
 INSURANCE CO. LTD.,
 HANOVER INSURANCE CO.
 LTD., SPHERE INSURANCE CO.
 LTD., DRAKE INSURANCE CO.
 LTD., BISHOPSGATE INSURANCE
 CO. LTD., "F" A/o., BRITISH LAW
 INSURANCE CO. LTD., NO. 2
 A/o., MINSTER INSURANCE CO.
 LTD., NO. 2 A/o., INSURANCE
 CORPORATION OF IRELAND, "L"
 A/o., FOLKSAM
 INTERNATIONAL INSURANCE
 CO. (U.K.) LTD., TERRA NOVA
 INSURANCE CO. LTD. per
 ANDREW DRYSDALE LTD.,
 ECONOMIC INSURANCE CO.
 LTD., "GENERAL" A/o., c/o
 Willis, Faber & Dumas Ltd., Ten
 Trinity Square, London EC3P 3AX
 England,

Plaintiff,

vs.

CITY OF MILWAUKEE,

Defendant and
 Third-Party
 Plaintiff,

vs.

EDWARD E. GILLEN COMPANY,
a corporation,
and GREAT LAKES TOWING
COMPANY, a corporation,

Third-Party
Defendants.

NOTICE OF APPEAL

NOTICE IS HEREBY GIVEN that plaintiffs in the above-entitled action hereby appeal to the United States Court of Appeals for the Seventh Circuit from the Final Judgment (styled "Judgment in a Civil Case") of the United States District Court for the Eastern District of Wisconsin, dated and filed May 28, 1993, and from the "Decision and Order" of United States District Judge Thomas J. Curran of the United States District Court for the Eastern District of Wisconsin, dated and filed May 28, 1993, both ordering and adjudging that the defendant, City of Milwaukee, is not liable to the plaintiffs for payment of prejudgment interest on the amount paid in settlement and that this action is dismissed upon its merits.

Dated at Milwaukee, Wisconsin this 24th day of June, 1993.

Harney B. Stover, Jr., Esq.
(WI 1005773; MI P 28864)
Attorney for Plaintiffs

P. O. ADDRESS:

DAVIS & KUELTHAU, S.C.

111 East Kilbourn Avenue, #1400

Milwaukee, Wisconsin 53202

Telephone: (414) 276-0200

Facsimile: (414) 276-9369

ORDER LIST

FRIDAY, JANUARY 6, 1995

**APPEALS - JURISDICTION NOTED
OR POSTPONED**

- 94-631) MILLER, ZELL, ET AL., V. JOHNSON, DAVIDA,
) ET AL.
)
- 94-797) ABRAMS, LUCIOUS, ET AL., V. JOHNSON,
) DAVIDA, ET AL.
)
- 94-929) UNITED STATES V. JOHNSON, DAVIDA, ET
) AL.

In these cases probable jurisdiction is noted.
The cases are consolidated and a total of one
hour is allotted for oral argument.

CERTIORARI GRANTED

- 94-431 RYDER, JAMES V. UNITED STATES
- 94-455 JOHNSON, TYSON, ET AL. V. JONES,
HOUSTON
- 94-555 ROCKY MOUNTAIN HOSP., ETC. V. PHILLIPS,
JUDITH
- 94-688 NATL. PVT. TRUCK COUNCIL V. OK TAX
COMMN., ET AL.
- 94-749 HURLEY, JOHN, ET AL. V. IRISH-AMERICAN
GAY, ET AL.
- 94-771 OK TAX COMMN. V. CHICKASAW NATION

- 94-859 BABBITT, SEC. OF INTERIOR V. SWEET HOME
CHAPTER, ET AL.

The petitions for writs of certiorari are granted.

- 94-514 UNITED STATES V. GAUDIN, MICHAEL

The petition for a writ of certiorari is granted limited to Question 1 presented by the petition.

- 94-788 MILWAUKEE, WI V. CEMENT DIV., NATL.
GYPSUM

The petition for a writ of certiorari is granted.

Justice Breyer took no part in the consideration or decision of this petition.

- 94-834) NORTH STAR STEEL CO. V. THOMAS,
) CHARLES, ET AL.
)

- 94-835) CROWN CORK & SEAL CO. V. UNITED STEEL-
) WKRS. OF AM.

The petitions for writs of certiorari are granted. The cases are consolidated and a total of one hour is allotted for oral argument.

- 94-6187 WITTE, STEVEN KURT V. UNITED STATES

The motion of petitioner for leave to proceed *in forma pauperis* and the petition for a writ of certiorari are granted.
